



CHAPTER 63.

An Act to amend the law with respect to assizes and to quarter sessions and with respect to proceedings heretofore usually dealt with on the Crown side of the King's Bench Division of the High Court; to enable effect to be given to international conventions affecting English Courts; to extend the jurisdiction of county courts and to amend the Supreme Court of Judicature (Consolidation) Act, 1925, and the County Courts Act, 1934; to amend the law relating to appeals from the Mayor's and City of London Court; and for purposes connected with the matters aforesaid. A.D. 1938.
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[29th July 1938.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Quarter Sessions.

1.—(1) The court of quarter sessions for any county may at any time apply to the Lord Chancellor for the appointment as chairman or deputy chairman of the court of a person who is or has been a barrister or solicitor of not less than ten years' standing having such legal experience as to qualify him in the opinion of the Lord Chancellor to act as chairman or deputy chairman of quarter sessions.

A.D. 1938. chairman of quarter sessions, and where such an application has been made, it shall be lawful for His Majesty, on the recommendation of the Lord Chancellor, to appoint such a chairman or deputy chairman accordingly :

Provided that, before making any recommendation for an appointment under this section, the Lord Chancellor shall consider any representations which may be made to him with respect thereto by the court of quarter sessions and shall take into account the expediency of recommending where practicable a person residing in, or otherwise connected with, the county in or for which the court of quarter sessions is held and, in the case of any county in Wales or the county of Monmouth, a person able to speak the Welsh language.

(2) Where a separate court of quarter sessions is held for any division or part of a county, or a court of quarter sessions for a whole county is held in two or more divisions or parts of the county, the Lord Chancellor may upon the application of the court recommend under the foregoing subsection the appointment of such a person as aforesaid as chairman or deputy chairman of the separate court of quarter sessions for the division or part, or, as the case may be, of the quarter sessions held in the division or part, and His Majesty may accordingly appoint such a chairman or deputy chairman.

(3) Any chairman or deputy chairman appointed under this section shall hold his office for such term and on such conditions as to retirement as may be specified in his appointment and shall, if not already a justice of the peace for the county for which he is appointed, be a justice of the peace for that county by virtue of his office, but he shall not act as chairman or deputy chairman or as a justice of the peace until he has taken the oaths required to be taken by a justice of the peace for the county.

(4) In this Act the expression "deputy chairman" means, in relation to any court of quarter sessions, a person, by whatsoever name styled, performing or nominated to perform the duty of presiding over the court in the absence of the chairman and of presiding over any second court, and the said expression includes, in relation to any court, any number of such persons.

(5) This section shall not apply to the court of quarter sessions for the county of London or for the

county palatine of Lancaster, or to the court of the recorder of any borough having a separate court of quarter sessions. A.D. 1938. —

2.—(1) At any session of a court of quarter sessions presided over by a legally qualified chairman of the court, the court shall (in addition to such jurisdiction with respect to the trial of offences as is vested in courts of quarter sessions at the commencement of this Act) have jurisdiction to try a person charged with any of the offences specified in the First Schedule to this Act. Extension of jurisdiction of quarter sessions.

(2) For the purposes of this section, a person shall not, in relation to a court of quarter sessions, be deemed to be a legally qualified chairman of the court unless he is—

- (a) a chairman or a deputy chairman of the court appointed under this Act;
- (b) a person who is or has been the holder of an office mentioned in the next following subsection and who has been elected by the court as chairman or deputy chairman thereof;
- (c) a chairman or a deputy chairman of the court appointed under section forty-two of the Local Government Act, 1888, or a person appointed under section two of the Quarter Sessions (London) Act, 1896, to act as chairman or deputy chairman of the court; 51 & 52 Vict. c. 41.
59 & 60 Vict. c. 55.
- (d) a chairman or a deputy chairman of the court appointed under the Lancashire Quarter Sessions Act, 1928; 18 & 19 Geo. 5. c. xxx.
- (e) a chairman or a deputy chairman of the court appointed before the commencement of this Act under section ninety of the Middlesex County Council Act, 1934; 24 & 25 Geo. 5. c. lxxxix.
- (f) in the case of the court of quarter sessions for a borough having a population of not less than fifty thousand, the recorder, a deputy recorder or an assistant recorder of the borough for which the court is held.

(3) The offices referred to in paragraph (b) of the last foregoing subsection are the following offices, that is to say, member of the Judicial Committee of the Privy Council, judge of the Supreme Court, official referee

A.D. 1938. — attached to that Court, Railway and Canal Commissioner, judge of a county court, His Majesty's Attorney-General, His Majesty's Solicitor-General, Director of Public Prosecutions, and recorder of any borough having a separate court of quarter sessions and a population of not less than fifty thousand.

(4) For the purposes of this section, a borough shall be deemed to have a population of not less than fifty thousand if, according to the census last published before the commencement of this Act or according to any census published after the commencement of this Act, it contained or contains a population of fifty thousand or more.

(5) Where at any session of a court of quarter sessions having a legally qualified chairman no legally qualified chairman is present, the court shall nevertheless have jurisdiction to try a person charged with any of the offences specified in the First Schedule to this Act if the court is presided over by a justice of the peace for the county deputed to preside at that session by a legally qualified chairman of the court and the justice so deputed is either a person who holds or has held one of the offices mentioned in subsection (3) of this section or a person approved by the Lord Chancellor as being qualified to act as such a deputy:

Provided that this subsection shall not apply to the court of quarter sessions for the county of London or to the court of the recorder of any borough having a separate court of quarter sessions.

(6) Where a person charged with any of the offences specified in the First Schedule to this Act is committed to a court of quarter sessions and that court has not for the time being jurisdiction to try him for that offence, the power of the court under subsection (2) of section fourteen of the Criminal Justice Act, 1925, shall nevertheless include power to direct that the trial of the accused shall take place before a court of assize or before a court of quarter sessions for some other place.

15 & 16
Geo. 5. c. 86.

Power to
adjourn
quarter
sessions
generally.

3.—(1) The powers of a court of quarter sessions for any county or division or part of a county shall include power to adjourn the sessions generally without fixing any date for the adjourned sessions or to a date to be subsequently fixed by the chairman or otherwise as the court

ordering the adjournment may direct, but if, after such an order has been made, adjourned sessions in pursuance of the order are not held, or are held but not concluded, before the date fixed under section twenty-two or section twenty-three of the Criminal Justice Act, 1925, for the next general or quarter sessions of the peace, then the sessions at which the order was made or the adjourned sessions, as the case may be, shall be deemed to be concluded immediately before the commencement of the sessions to be held on the date fixed under that Act, and any proceedings which might have been dealt with at adjourned sessions held in pursuance of the order may be dealt with as if they had been adjourned to the sessions commencing on that date, and any recognisances entered into in connection with any such proceedings shall have effect accordingly as if they had been expressed to relate to those sessions. A.D. 1938.

(2) The manner in which and the persons to whom notice is to be given of the holding of adjourned sessions in pursuance of an order made under this section and the manner in which the date of the holding of such adjourned sessions is to be published shall be such as may be from time to time determined by the court of quarter sessions at a session held on a date fixed under section twenty-two or section twenty-three of the Criminal Justice Act, 1925.

4.—(1) If at any time it is agreed between the court of quarter sessions for any county or division or part of a county and the county council that a salary should be paid to a chairman or deputy chairman of the court appointed under this Act, the county council shall pay to that chairman or deputy chairman a salary at such rate as may be so agreed as aforesaid and be approved by the Lord Chancellor. Power to remunerate legally qualified chairmen and deputy chairmen of quarter sessions.

(2) It shall be the duty of any chairman or deputy chairman of a court of quarter sessions to whom a salary is payable under this section to act as the chairman or as a member of the rating appeal committee appointed under section thirty-two of the Rating and Valuation Act, 1925, if he is appointed by quarter sessions as such a chairman or member, unless it has been agreed between him, the court of quarter sessions, and the county council that the rate of his salary shall be determined on the assumption that he will not so act. 15 & 16 Geo. 5. c. 90.

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(*Miscellaneous Provisions*) Act, 1938.

A.D. 1938.

25 & 26
Geo. 5.
c. cxiii.

(3) Subject as hereinafter provided, the provisions of section ninety of the Middlesex County Council Act, 1934, and the provisions of section one hundred and fourteen of the Hertfordshire County Council Act, 1935, shall not apply to any chairman or deputy chairman of a court of quarter sessions appointed under this Act unless with his consent the court of quarter sessions resolves that those provisions, respectively, shall apply to him, but if at any time such a resolution is passed with respect to any such chairman or deputy chairman, the provisions of the said section ninety or of the said section one hundred and fourteen, as the case may be, shall apply to him in lieu of the foregoing provisions of this section :

Provided that subsection (11) of section ninety of the Middlesex County Council Act, 1934, shall have effect whether the salaried chairman or salaried deputy chairman in office is in receipt of a salary under that Act or under this Act.

Assizes and Committal.

Amendment
as to
power to
cancel
assizes.
15 & 16
Geo. 5. c. 49.

5. The power exercisable under section seventy-seven of the Supreme Court of Judicature (Consolidation) Act, 1925, by the Lord Chief Justice, with the concurrence of the Lord Chancellor, to direct that assizes shall not be held at any place on a circuit where there is no business, or no substantial amount of business, to be transacted at the assizes then about to be held at any place on a circuit, shall be exercised in his sole discretion by the judge going the circuit or, if the place is a place at which two judges will be on circuit together, by the senior of them.

Amend-
ments as to
committal
to assizes
or quarter
sessions.
52 & 53 Vict.
c. 12.

6.—(1) The power conferred on justices by section one of the Assizes Relief Act, 1889, to direct that a person charged with an indictable offence triable at quarter sessions shall be tried before a court of assize instead of at the next practicable court of quarter sessions having jurisdiction to try the offence shall not be exercised unless they are of opinion that there are circumstances which make the case an unusually grave or difficult one, or that serious delay or inconvenience would be occasioned by committal to quarter sessions :

Provided that nothing in this subsection shall affect the power of the Lord Mayor of the City of London or

any alderman of that city to direct that a person charged with an offence before him shall be tried at the Central Criminal Court. A.D. 1938. —

(2) Subsection (2) of section thirty-eight of the Larceny Act, 1916 (which requires justices in certain circumstances to commit persons charged with burglary to assizes) shall cease to have effect. 6 & 7 Geo. 5. c. 50.

(3) For paragraph (a) of the proviso to subsection (1) of section fourteen of the Criminal Justice Act, 1925 (which restricts the power of justices to commit to other assizes or quarter sessions) there shall be substituted the following paragraph, that is to say:—

“(a) unless, at the date of the committal, it appears to the examining justices to be unlikely that, in the case of a committal to assizes, the next assizes, or, in the case of a committal to quarter sessions, the next quarter sessions, to which but for this section he might have been committed, will be held within one month from that date; or”

Amendment of Law with respect to proceedings heretofore usually dealt with on the Crown side of King's Bench Division.

7.—(1) The prerogative writs of mandamus, prohibition and certiorari shall no longer be issued by the High Court.

(2) In any case where the High Court would, but for the provisions of the last foregoing subsection, have had jurisdiction to order the issue of a writ of mandamus requiring any act to be done, or a writ of prohibition prohibiting any proceedings or matter, or a writ of certiorari removing any proceedings or matter into the High Court or any division thereof for any purpose, the Court may make an order requiring the act to be done, or prohibiting or removing the proceedings or matter, as the case may be.

(3) The said orders shall be called respectively an order of mandamus, an order of prohibition and an order of certiorari.

(4) No return shall be made to any such order and no pleadings in prohibition shall be allowed, but the order shall be final, subject to any right of appeal therefrom.

Orders of mandamus, prohibition and certiorari to be substituted for prerogative writs of mandamus, prohibition and certiorari.

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(*Miscellaneous Provisions*) Act, 1938.

A.D. 1938. — (5) In any enactment references to any writ of mandamus, prohibition or certiorari shall be construed as references to the corresponding order and references to the issue or award of any such writ shall be construed as references to the making of the corresponding order.

Power to make orders of mandamus in certain other cases. 8. The power of the High Court under any enactment to require justices of the peace or a judge or officer of a county court to do any act relating to the duties of their respective offices, or to require any court of summary jurisdiction or court of quarter sessions to state a case for the opinion of the Court, in any case where immediately before the commencement of this Act the Court had by virtue of any enactment jurisdiction to make a rule absolute or to make an order, as the case may be, for any of those purposes, shall be exercisable by order of mandamus.

Abolition of informations in the nature of quo warranto. 9.—(1) Informations in the nature of quo warranto are hereby abolished.

(2) In any case where any person acts in an office in which he is not entitled to act and an information in the nature of quo warranto would, but for the provisions of the last foregoing subsection, have lain against him, the High Court may grant an injunction restraining him from so acting and may (if the case so requires) declare the office to be vacant.

(3) No proceedings for an injunction under this section shall be taken by a person who would not immediately before the commencement of this Act have been entitled to apply for an information in the nature of quo warranto.

Rules to be made under s. 99 of 15 & 16 Geo. 5. c. 49. 10.—(1) Rules of court shall be made under section ninety-nine of the Supreme Court of Judicature (Consolidation) Act, 1925,—

(a) prescribing the procedure in cases where an order of mandamus, prohibition or certiorari is sought, or proceedings are taken for an injunction under the last foregoing section;

(b) requiring, except in such cases as may be specified in the rules, that leave shall be obtained before an application is made for any such order or before any such proceedings are commenced;

- (c) requiring that, where leave is so obtained, no relief shall be granted and no ground relied upon, except with the leave of the court, other than the relief and grounds specified when the application for leave was made. A.D. 1938. —

(2) Section five of the Administration of Justice 23 & 24
(Miscellaneous Provisions) Act, 1933, shall cease to have Geo. 5. c. 36.
effect.

11.—(1) Save as hereinafter provided, no indictment or inquisition shall be tried in the King's Bench Division of the High Court or removed into that Division for trial therein : Powers of High Court with respect to the trial of indictments, &c.

Provided that—

- (a) the High Court may direct that any indictment or inquisition shall be tried at bar in that Division; and
- (b) any indictment found in accordance with subsection (4) of section one of the Administration of Justice (Miscellaneous Provisions) Act, 1933, by a grand jury of the county of London and county of Middlesex shall, unless the High Court orders otherwise under the powers conferred by this section, be tried in that Division.

(2) The High Court shall have power, instead of directing that any indictment or inquisition shall be tried at bar in the King's Bench Division, to direct that it shall be tried at the Central Criminal Court before three judges of the King's Bench Division; and with respect to any such indictment as is mentioned in paragraph (b) of the last foregoing subsection may, without directing that it shall be tried before three judges of the King's Bench Division, direct that it shall be tried at the Central Criminal Court.

(3) If it appears to the High Court to be expedient in the interests of justice, the court may direct that an indictment or inquisition shall, instead of being tried at the court of assize or quarter sessions at which it would but for the direction be tried, be proceeded with and tried at such other court of assize, or, if the offence is within the jurisdiction of quarter sessions, at such other

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A.D. 1938. court of quarter sessions, as may be specified in the direction.

8 Edw. 7.
a 15.

(4) Where a person is to be tried by a court in a different county or borough from that in which he would have been tried but for a direction made under the foregoing provisions of this section, any costs payable in the case under the Costs in Criminal Cases Act, 1908, shall in the first instance be paid in the same manner as if the offence had been committed in the county or borough in which the offender is tried, but shall be recoverable by the treasurer of that county or borough from the treasurer of the county or borough in which the offence was committed.

(5) His Majesty may from time to time by Order in Council make such provision as to the jurisdiction of the court of trial and the attendance, jurisdiction, authority and duty of sheriffs, coroners, justices, gaolers, officers, jurors and persons, the use of any prison, the removal of prisoners, the alteration of any commissions, writs, precepts, indictments, recognisances, inquisitions, depositions (including exhibits thereto), and documents, and the expenses of maintaining and removing prisoners, as seems necessary or expedient for the purposes of the foregoing provisions of this section.

Abolition of
certain pro-
ceedings
in the High
Court.

12. Outlawry proceedings, the exhibiting of articles of the peace in the High Court, and criminal informations, other than informations filed ex officio by His Majesty's Attorney-General, are hereby abolished.

Miscellaneous Amendments of Law.

Inter-
national
Conventions
affecting
jurisdiction
of English
Courts.

13.—(1) The provisions of this section shall apply for the purpose of giving effect as respects England to any Convention for the time being in force, by virtue of which the High Contracting Parties to the Convention, or their property, are rendered liable to legal proceedings in the courts of the other High Contracting Parties.

(2) As from such day as His Majesty may by Order in Council certify to be the day on which any such Convention comes into force as respects England, every High Contracting Party to the Convention shall, for the purposes of any proceedings brought in the Supreme Court against that party or in respect of property of that

party in accordance with the provisions of the Convention, be deemed to have submitted to the jurisdiction of the Court; and the Court shall, in determining whether or to what extent any such proceedings are within its jurisdiction, give effect to any provision of the Convention (including any Protocol thereto) prescribing the mode of proof of any material circumstance. A.D. 1938.

(3) His Majesty may by Order in Council from time to time certify who are the High Contracting Parties to any such Convention, in respect of what territories they are respectively parties, and to what extent they have availed themselves of any provision of the Convention for suspending or modifying the operation of the Convention, and any such Order shall, except in so far as it has been superseded by a subsequent Order, be conclusive evidence of the matters so certified.

14.—(1) Where under the Supreme Court of Judicature (Consolidation) Act, 1925, the court has made, whether before or after the passing of this Act, any of the following orders, that is to say:—

Power of High Court to discharge or vary orders for alimony and maintenance.

- (a) an order under section one hundred and eighty-seven of that Act for the making or securing of periodical payments;
- (b) an order under subsection (2) of section one hundred and ninety of that Act for the payment of any monthly or weekly sum for the maintenance and support of either party to the marriage;
- (c) an interim order under subsection (3) of the said section one hundred and ninety for the payment of money by way of alimony or otherwise to either party to the marriage, or the like order in proceedings for judicial separation;
- (d) an order under subsection (4) of the said section one hundred and ninety for alimony to either party to the marriage, or any other order for alimony;
- (e) an order under subsection (2) of section one hundred and ninety-one of that Act for the making of periodical payments out of profits of trade or earnings;

or where before the commencement of that Act the court has made any similar order under the enactments

A.D. 1938. — thereby repealed, the court shall have power to discharge or vary the order or to suspend any provisions thereof temporarily and to revive the operation of any provisions so suspended.

(2) In exercising the powers conferred by this section, the court shall have regard to all the circumstances of the case, including any increase or decrease in the means of either of the parties to the marriage.

Provisions
as to appeals
from the
Mayor's and
City of
London
Court.
10 & 11
Geo. 5.
c. cxxxiv.

15.—(1) Subject to the provisions of this section, all appeals from causes and proceedings in the Mayor's and City of London Court shall be to the Court of Appeal.

(2) In the case of any such cause or proceedings as aforesaid in which, in accordance with section eight of the Mayor's and City of London Court Act, 1920, the procedure of the Supreme Court (as applied or modified by the rules made for the purposes of that section) has been adopted, an appeal shall lie in the like circumstances in all respects as if the cause or proceedings had been in the High Court; and in the case of any other cause or proceedings in the Mayor's and City of London Court an appeal shall lie in the like circumstances in all respects as if the cause or proceedings had been in a county court.

(3) In this section the expression "appeal" includes any motion for a new trial or to set aside a verdict, finding or judgment.

(4) Nothing in this section shall affect any of the following enactments, that is to say—

16 & 17 Vict.
c. 137.

(a) sections thirty-seven to forty of the Charitable Trusts Act, 1853;

37 & 38 Vict.
c. 42.

(b) section thirty-six of the Building Societies Act, 1874;

41 & 42 Vict.
c. 76.

(c) section four of the Telegraph Act, 1878;

49 & 50 Vict.
c. 27.

(d) section ten of the Guardianship of Infants Act, 1886;

49 & 50 Vict.
c. 57.

(e) section one of the Parliamentary Elections (Returning Officers) Act (1875) Amendment Act, 1886.

Extension of
jurisdiction
of county
court.
24 & 25 Geo. 5.
c. 53.

16.—(1) The amounts by reference to which the jurisdiction of a county court in actions of contract or tort or for money recoverable by statute is limited by sections forty and forty-one of the County Courts Act, 1934, shall be increased by one hundred pounds, and accordingly

for references in those sections to one hundred pounds there shall be substituted references to two hundred pounds : A.D. 1938.
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Provided that, if the amount claimed exceeds one hundred pounds, the defendant may, within such time as may be prescribed by county court rules, give notice that he objects to the action being tried in the county court, and, where such notice is given, the judge shall order that the action be transferred to the High Court.

(2) Nothing in this section shall apply to causes and proceedings in the Mayor's and City of London Court, and in section one hundred and eighty-six of the County Courts Act, 1934, the reference to the jurisdiction of a county court shall be construed accordingly.

17. The power of the High Court under section fifty-four of the County Courts Act, 1934, to transfer to a county court actions or matters assigned to the Chancery Division of the High Court shall be exercisable whether or not an application for the transfer has been made by a party to the action or matter. Transfer of equity proceedings from High Court to county court without application.

18. Section ninety-nine of the County Courts Act, 1934, (which confers power to make county court rules) shall have effect as if the following paragraph were added to subsection (3) of that section :— Jurisdiction of county court registrars.

“(e) authorising the registrar to hear and determine any proceedings other than actions, and any actions in which the defendant fails to appear at the hearing or admits the claim, and, on the application of the parties and by leave of the judge, any actions in which the sum claimed or the amount involved does not exceed ten pounds.”

General.

19.—(1) The enactments mentioned in the first column of the Second Schedule to this Act shall have effect subject to the amendments specified in the second column of that Schedule (being amendments consequential upon the foregoing provisions of this Act or relating to matters of minor detail). Consequential and minor amendments.

(2) The enactments mentioned in the first column of the Third Schedule to this Act, being enactments which

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Short title,
construc-
tion, extent,
repeal and
commence-
ment.

20.—(1) This Act may be cited as the *Administration of Justice (Miscellaneous Provisions) Act, 1938*.

(2) In this Act references to any enactment shall, except where the context otherwise requires, be construed as references to that enactment as amended by any subsequent enactment, including this Act and any Act passed during the same session of Parliament as this Act.

(3) The Acts mentioned in the first and second columns of the Fourth Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

(4) This Act shall not extend to Scotland or to Northern Ireland.

(5) This Act shall come into operation on the first day of January nineteen hundred and thirty-nine.

SCHEDULES.

A.D. 1938.

FIRST SCHEDULE.

Section 2.

ADDITIONAL OFFENCES TRIABLE AT QUARTER SESSIONS.

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|---|--|
| 1. Offences under section thirty-eight of the Chelsea and Kilmainham Hospitals Act, 1826. | 7 Geo. 4.
c. 16. |
| 2. Offences under section forty-nine of the Army Prize Act, 1832. | 2 & 3 Will. 4.
c. 53. |
| 3. Offences under section fourteen of the Malicious Damage Act, 1861. | 24 & 25 Vict.
c. 97. |
| 4. Offences under section sixty of the Offences Against the Person Act, 1861. | 24 & 25 Vict.
c. 100. |
| 5. Offences under section eleven of the Criminal Law Amendment Act, 1885. | 48 & 49 Vict.
c. 69. |
| 6. Offences under section thirteen of the Stamp Duties Management Act, 1891. | 54 & 55 Vict.
c. 38. |
| 7. Offences under sections two, three, four, five and six of the Perjury Act, 1911. | 1 & 2 Geo. 5.
c. 6. |
| 8. Offences under paragraph (a) of subsection (2) of section two of the Forgery Act, 1913, in relation to any document, being an accountable receipt, where the amount of the money or the value of the property in respect of which the offence is committed does not exceed twenty pounds, offences under section four of that Act, and offences under that Act which would, before the passing of that Act, have constituted offences under section thirteen of the Stamp Duties (Management) Act, 1891. | 3 & 4 Geo. 5.
c. 27. |
| 9. Offences under section thirty-six of the Criminal Justice Act, 1925. | 54 & 55 Vict.
c. 38.
15 & 16
Geo. 5. c. 86. |
| 10. Offences under the Coinage Offences Act, 1936, other than offences under paragraph (a) of subsection (1) of section one, section two, subsections (1) and (2) of section nine, and section ten of that Act. | 26 Geo. 5. &
1 Edw. 8.
c. 16. |
| 11. Conspiracies to commit offences punishable on summary conviction. | |
| 12. Offences consisting of the forgery of any document or thing, being offences triable on indictment or alternatively by a court of summary jurisdiction, except offences under section one of the Official Secrets Act, 1920. | |

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SECOND SCHEDULE.

Section 19.

CONSEQUENTIAL AND MINOR AMENDMENTS.

Act to be amended.	Amendment.
The Justices Protection Act, 1848. 11 & 12 Vict. c. 44.	For section five there shall be substituted the following section :— “ 5. In all cases where a justice of the peace refuses to do any act relating to the duties of his office, it shall be lawful for the party requiring the act to be done to apply to the High Court for an order of mandamus, and, if the Court make the order, no action or proceeding whatsoever shall be commenced or prosecuted against the justice for having obeyed the order.”
The Summary Jurisdiction Act, 1857. 20 & 21 Vict. c. 43.	For section five there shall be substituted the following section :— “ 5. Where justices refuse to state a case as aforesaid, it shall be lawful for the appellant to apply to the High Court for an order of mandamus, and, if the Court make the order, the justice or justices shall state the case accordingly, upon the appellant entering into such recognizance as is hereinbefore provided.”
The Summary Jurisdiction Act, 1879. 42 & 43 Vict. c. 49.	In subsection (1) of section thirty-three, for the word “ order ”, where it secondly occurs, there shall be substituted the words “ order of mandamus ”.
The Supreme Court of Judicature (Consolidation) Act, 1925. 15 & 16 Geo. 5. c. 49.	In subsection (2) of section thirty, the words “ or in proceedings on the Crown side of the King’s Bench Division ” shall be omitted. In subsection (2) of section fifty, the words “ or in proceedings on the Crown side of the King’s Bench Division ” shall be omitted.

[1 & 2 GEO. 6.] *Administration of Justice* [CH. 63.]
(Miscellaneous Provisions) Act, 1938.

Act to be amended.	Amendment.	A.D. 1938.
The Supreme Court of Judicature (Con- solidation) Act, 1925—<i>cont.</i> 15 & 16 Geo. 5. c. 49—<i>cont.</i>	In subsection (1) of section seventy-seven, for the words "Lord Chief Justice" there shall be substituted the words "judge going the circuit or if the place "is a place at which two judges will be "on circuit together, the senior of "them," and the words "with the concurrence of the Lord Chancellor" shall be omitted; in subsection (3) of that section, for the words "Lord Chief Justice" there shall be substi- tuted the word "judge". In subsection (1) of section seventy-eight, the words "by Order in Council" shall be omitted. For subsection (3) of section ninety-nine there shall be substituted the following subsection :— "(3) The power to make rules of court under this section shall include power to make rules as to proceedings by and against the Crown." At the end of subsection (3) of section one hundred and sixteen there shall be added the following proviso :— "Provided that a master of the Supreme Court shall be qualified to be so appointed to act as a deputy for a registrar in bankruptcy of the High Court." In section two hundred and twenty, for the words "department of the Central Office," in both places where they occur, there shall be substituted the words "office of the Supreme Court," and for the word "department," where- ever that word otherwise occurs, there shall be substituted the word "office"; and in subsection (3) of that section, for the words "the Lord Chancellor, the "Lord Chief Justice and the senior "master of the Supreme Court (King's "Bench Division)" there shall be substituted the words "the Lord "Chancellor, with the concurrence of "the Lord Chief Justice and the "President of the Probate Division".	2ND SCH. —<i>cont.</i>

[CH. 63.] *Administration of Justice* [1 & 2 GEO. 6.]
(Miscellaneous Provisions) Act, 1938.

A.D. 1938.	Act to be amended.	Amendment.
2ND SCH. —cont.	The Criminal Justice Act, 1925. 15 & 16 Geo. 5. c. 86.	For subsection (4) of section twenty the following subsection shall be substituted :— “(4) Where a court of quarter sessions refuses to state a case, the applicant may apply to the High Court for an order of mandamus, and the High Court may make an order accordingly.”
	The County Courts Act, 1934. 24 & 25 Geo. 5. c. 53.	In sections forty and forty-one, for the words “one hundred pounds,” wherever those words occur, there shall be substituted the words “two hundred pounds.” For section forty-two there shall be substituted the following section :— “42.—(1) Where a plaintiff has a cause of action for more than two hundred pounds in which, if it were not for more than two hundred pounds, a county court would have jurisdiction, the plaintiff may abandon the excess, and thereupon a county court shall have jurisdiction to hear and determine the action. (2) Where a plaintiff has a cause of action for more than one hundred pounds, he may abandon the excess and shall thereupon be deemed, for the purposes of section forty-four of this Act, to claim a sum of one hundred pounds only. (3) Where any action, in which the plaintiff has abandoned part of his claim under this section, is heard in a county court, the plaintiff shall not recover an amount exceeding two hundred pounds or one hundred pounds, as the case may be, and the judgment of the court in the action shall be in full discharge of all demands in respect of the cause of action, and entry of the judgment shall be made accordingly.” For section forty-four there shall be substituted the following section :— “44.—(1) Where there is commenced in a county court any action

[1 & 2 GEO. 6.] *Administration of Justice* [CH. 63.]
(Miscellaneous Provisions) Act, 1938.

Act to be amended.	Amendment.	A.D. 1938.
The County Courts Act, 1934—<i>cont.</i> 24 & 25 Geo. 5. c. 53 —<i>cont.</i>	founded on contract or tort or for the recovery of any penalty, expenses, contribution or other like demand, wherein the plaintiff claims a sum exceeding one hundred pounds, the defendant may within such time as may be prescribed by county court rules give notice that he objects to the action being tried in the court, and, where such a notice is given, the judge shall order that the action be transferred to the High Court. (2) Where there is commenced in a county court— (a) any action founded on contract wherein the plaintiff claims a sum exceeding twenty pounds but not exceeding one hundred pounds; or (b) any action founded on tort wherein the plaintiff claims a sum exceeding ten pounds but not exceeding one hundred pounds; the defendant may within such time as may be prescribed by county court rules give notice that he objects to the action being tried in the court, and where such a notice is given, the judge shall order that the action be transferred to the High Court, if— (i) the defendant gives security approved by the Registrar for the amount claimed and the costs of trial in the High Court, not exceeding in the aggregate a sum of one hundred and fifty pounds; and (ii) the judge certifies that in his opinion some important question of law or fact is likely to arise."	2ND SCH. —<i>cont.</i>

[CH. 63.] *Administration of Justice* [1 & 2 GEO. 6.]
(Miscellaneous Provisions) Act, 1938.

A.D. 1938. Act to be amended.

Amendment.

2ND SCH.
 —cont.

The County Courts
 Act, 1934—cont.
 24 & 25 Geo. 5. c. 53
 —cont.

For subsection (1) of section fifty-four, the following subsection shall be substituted—

“(1) Where there is commenced in the High Court any action or matter to which this section applies, the court or judge may, if it or he thinks fit, whether upon the application of any party thereto or otherwise, order that the action or matter be transferred to any county court which the court or judge may deem the most convenient.”

For the proviso to section eighty-seven the following proviso shall be substituted:—

“Provided that nothing in this section shall affect the power to make county court rules authorising the registrar to exercise jurisdiction and powers conferred on the court by this or any other Act.”

In subsection (1) of section one hundred and thirteen for the words “an order or summons to show cause why a writ of certiorari or prohibition should not issue to a county court” there shall be substituted the words “leave to make an application for an order of certiorari or prohibition to a county court”, and for the words “order or summons”, where those words secondly occur, there shall be substituted the word “application”.

For section one hundred and fourteen the following section shall be substituted:—

“114. Any party requiring any act to be done by a judge or officer of a county court relating to the duties of his office may apply to the High Court for an order of mandamus, and that court may make an order accordingly, and the judge or officer of the county court, on being served with the order, shall obey it on pain of attachment.”

[1 & 2 GEO. 6.] *Administration of Justice* [CH. 63.]
(Miscellaneous Provisions) Act, 1938.

Act to be amended.	Amendment.	A.D. 1938.
The Middlesex County Council Act, 1934. 24 & 25 Geo. 5. c. lxxxix.	In subsection (8) of section ninety except so far as it applies to any salaried chairman or salaried deputy chairman appointed before the commencement of this Act for the words "in pursuance of this section" there shall be substituted the words "on the termination of his appointment".	2ND SCH. —cont.
The Hertfordshire County Council Act, 1935. 25 & 26 Geo. 5. c. cxiii.	In subsection (8) of section one hundred and fourteen for the words "in pursuance of this section" there shall be substituted the words "on the termination of his appointment".	

THIRD SCHEDULE.

Section 19.

ENACTMENTS WHICH HAVE BECOME OBSOLETE OR UNNECESSARY.

Title or Short Title, Session and Chapter.	Extent to which Obsolete or Unnecessary.
An Act to prevent malicious informations in the Court of King's Bench. 4 Will. & Mary, c. 18.	Section six.
The Quarter Sessions Appeal Act, 1731. 5 Geo. 2. c. 19.	Sections two and three.
The Bail Bonds Act, 1808. 48 Geo. 3. c. 58.	Sections one and three.
The Pleading in Misdemeanour Act, 1819. 60 Geo. 3. & 1 Geo. 4. c. 4.	The whole Act.

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(*Miscellaneous Provisions*) Act, 1938.

A.D. 1938.

FOURTH SCHEDULE.

Section 20.

ENACTMENTS REPEALED.

Session and Chapter.	Title or Short Title.	Extent of Repeal.
18 Edw. 3. St. 1.	Concerning exigents	The whole Act.
18 Edw. 3. St. 2, c. 5.	No exigent in trespass, unless against the peace.	The whole chapter.
25 Edw. 3. St. 5, c. 14.	Process against persons indicted of felony.	The whole chapter.
6 Hen. 6. c. 1.	Indictment found in the King's Bench by jurors suspected or unduly procured, etc.	The whole Act.
8 Hen. 6. c. 10.	Malicious indictments or appeals of persons in one county who are dwelling in another, etc.	The whole chapter.
10 Hen. 6. c. 6.	St. 8 Hen. 6. c. 10, recited, as to process upon the indictments of persons in one county who are dwelling in another; the statute confirmed, etc.	The whole Act.
6 Hen. 8. c. 4.	Act for proclamations to be made before the exigent be awarded into foreign shires.	The whole Act.
6 Hen. 8. c. 6.	An Act concerning felons and murderers.	The whole Act.
27 Hen. 8. c. 24.	An Act for re-continuing certain liberties and franchises heretofore taken from the Crown.	In section one the words "or any outlawries for any such offences".

[1 & 2 GEO. 6.] *Administration of Justice* [CH. 63.]
(*Miscellaneous Provisions*) Act, 1938.

Session and Chapter.	Title or Short Title.	Extent of Repeal.	A.D. 1938. — 4TH SCH. —cont.
1 Edw. 6. c. 10.	An Act for exigents and proclamations in Wales and in the county palatine of Chester and also in the city of Chester.	The whole Act.	
5 & 6 Edw. 6. c. 11.	An Act for the punishment of diverse treasons.	In section four, the words from "and that all process of outlawry" to the end of the section; section five; and in section six the words "or process of outlawry".	
5 & 6 Edw. 6. c. 26.	An Act for writs upon proclamations and exigents to be current within the county palatine of Lancaster.	The whole Act.	
31 Eliz. c. 9.	An Act for writs upon proclamations and exigents to be current within the county palatine of Durham.	The whole Act.	
21 James 1. c. 8.	An Act to prevent and punish the abuses in procuring process and Superseas of the Peace and Writ of Certiorari.	The whole Act.	
4 W. & M. c. 18.	An Act to prevent malicious informations in the Court of King's Bench.	The whole Act.	
4 W. & M. c. 22.	An Act for regulating Proceedings in the Crown Office of the Court of Kings Bench at Westminster.	The whole Act.	
5 & 6 W. & M. c. 11.	An Act to prevent delays of Proceedings at the Quarter Sessions of the Peace.	The whole Act.	

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(Miscellaneous Provisions) Act, 1938.*

A.D. 1938.

4TH SCH.
—cont.

Session and Chapter.	Title or Short Title.	Extent of Repeal.
7 & 8 Will. 3. c. 3.	An Act for regulating trials in cases of treason and mis-prison of treason.	Section three.
1 Ann. c. 12	An Act to explain and alter the Act made in the Two and twentieth Year of King Henry the Eighth concerning repairing and amending of Bridges in the Highways and for repealing an Act made in the Twenty third year of Queen Elizabeth for the re-edifying of Cardiff Bridge in the County of Glamorgan and also for changing the Day of Election of the Wardens and Assistants of Rochester Bridge.	Section five.
5 Geo. 2. c. 19.	The Quarter Sessions Appeal Act, 1731.	Sections two and three.
38 Geo. 3. c. 52.	The Counties of Cities Act, 1798.	In section one the words "or by "the leave of the court of "King's Bench", the words "and in all cases where any "person or persons shall plead "to or traverse any of the facts "contained in the return to "any writ of mandamus", and the words "or if such writ of "mandamus be directed to "any person or persons, body "politick or corporate".
48 Geo. 3. c. 58.	The Bail Bonds Act, 1808.	The whole Act.
60 Geo. 3. & 1 Geo. 4. c. 4.	The Pleading in Mis-demeanour Act, 1819.	The whole Act.
4 & 5 Will. 4. c. 36.	The Central Criminal Court Act, 1834.	Sections sixteen and eighteen.
5 & 6 Will. 4. c. 50.	The Highways Act, 1835.	The proviso to section ninety-five.

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(Miscellaneous Provisions) Act, 1938.

Session and Chapter.	Title or Short Title.	Extent of Repeal.
12 & 13 Vict. c. 45.	The Quarter Sessions Act, 1849.	In section seven the words "or " if upon the return to any " writ of certiorari", and the proviso to that section.
19 & 20 Vict. c. 16.	The Central Criminal Court Act, 1856.	The whole Act.
20 & 21 Vict. c. clvii.	The Mayor's Court of London Procedure Act, 1857.	Sections four, eight, nine and ten.
25 & 26 Vict. c. 65.	An Act for the more speedy Trial of certain Homicides committed by Persons subject to the Mutiny Act.	Section sixteen.
33 & 34 Vict. c. 23.	The Forfeiture Act, 1870.	The proviso to section one.
33 & 34 Vict. c. 77.	The Juries Act, 1870	In section ten the words "nor " any man who is under out- " lawry".
39 & 40 Vict. c. 36.	The Customs Consolidation Act, 1876.	In section two hundred and forty-three the words "certiorari or".
51 & 52 Vict. c. 3.	The Statute Law Revision Act, 1888.	Subsection (2) of section one, and Part III of the Schedule.
8 Edw. 7. c. 15.	The Costs in Criminal Cases Act, 1908.	In subsection (2) of section six the words "or information".
6 & 7 Geo. 5. c. 50.	The Larceny Act, 1916.	Subsection (2) of section thirty-eight.
15 & 16 Geo. 5. c. 49.	The Supreme Court of Judicature (Consolidation) Act, 1925.	In subsection (2) of section thirty the words "or in proceedings on the Crown side " of the King's Bench Division"; in subsection (2) of section fifty the words "or in " proceedings on the Crown " side of the King's Bench " Division"; in subsection (1) of section seventy-seven the words "with the concurrence of the Lord Chancellor"; in subsection (1) of section seventy-eight the words "by Order in Council". The provisos to subsection (2) of section one hundred and ninety; and section one hundred and ninety-six.

A.D. 1938.

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4TH SCH.
—cont.

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(Miscellaneous Provisions) Act, 1938.*

A.D. 1938.
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4TH SCH.
—cont.

Session and Chapter.	Title or Short Title.	Extent of Repeal.
23 & 24 Geo. 5. c. 36.	The Administration of Justice (Miscellaneous Provisions) Act, 1933.	Section five.
24 & 25 Geo. 5. c. 53.	The County Courts Act, 1934.	So much of the Third Schedule as reproduces section ninety and section ninety-two of the County Courts Act, 1888.
24 & 25 Geo. 5. c. lxxxix.	The Middlesex County Council Act, 1934.	In section ninety, subsection (1), subsections (2) and (7) except so far as they apply to any salaried chairman or salaried deputy chairman appointed before the commencement of this Act, and subsections (3), (4) and (10).
25 & 26 Geo. 5. c. cxiii.	The Hertfordshire County Council Act, 1935.	In section one hundred and fourteen, subsections (1), (2), (3), (4), (7) and (9).

Printed by C.B.H. 13709 - Wt. 656 - Dd. 620 - 250 - 5/47

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